



File No.: EXP202409953

RESOLUTION OF RIGHTS PROCEDURE

Having reviewed the complaint registered on June 11, 2024, with this Agency and having carried out the procedural actions provided for in Title VIII of Organic Law 3/2018, of December 5, on the Protection of Personal Data and Guarantee of Digital Rights (hereinafter LOPDGDD), the following FACTS have been established:

FIRST: On June 11, 2024, a complaint was received by this Agency presented by A.A.A. (hereinafter, the complainant) against the PROVINCIAL COUNCIL OF CÁCERES (hereinafter, the respondent) for not having duly attended to their right of access to their personal data.

The complainant, on April 24, 2024, exercised the right of access to their personal data processed by the respondent, receiving a response on May 22, 2024.

They express their disagreement with the received document, which they qualify as incomplete and not in accordance with what the access request should contain. In particular, they miss the information regarding the recipients or categories of recipients to whom their personal data has been communicated or will be communicated, the retention period of their data, the information regarding the possibility of exercising their rights before the data controller, as well as the right to lodge a complaint with the Control Authority.

Along with their document, they provide:

- Document of the right of access submitted by the complainant in which it is requested "That I be provided free of charge the right of access to your files within a maximum period of one month from the receipt of this request, and that I be notified of the information within ten days from the favorable resolution of the access request."
- Response from the respondent to the access request submitted, where the personal data of the complainant is indicated, associated with the telematic file numbers in their possession, the origin of the same, as well as assignees and specific uses.

SECOND: In accordance with Article 65.4 of the LOPDGDD, this complaint was forwarded to the respondent, so that they could analyze it and inform this Agency within one month of the actions taken to comply with the requirements established in the data protection regulations.

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The respondent indicated that "(...) the request of the complainant has been attended to in an orderly and detailed manner. As an example, in the report from the IT and Innovation area, dated 05/21/2024, it can be verified that there is a section entitled 'Assignees' with information about the destination or category of recipients to whom their personal data is communicated, where it is indicated:

'Assignees: Personal data has not been transferred to third parties, except in the following cases:

Legal or regulatory compliance: When the transfer of personal data to another public administration is necessary for compliance with an applicable law, regulation, or legal provision. For example, it may be necessary to share information with government agencies responsible for law enforcement for criminal investigations or to ensure compliance with specific regulations.

Essential public interests: When the transfer of data is necessary to protect essential public interests, such as national security, defense, public safety, public health, or the protection of the rights and freedoms of others.

Cooperation between public entities: When the transfer of data is necessary to facilitate cooperation between different governmental bodies in the exercise of their legal functions. For example, it may be necessary to share information between public entities to coordinate the provision of public services or to carry out joint investigations.

Management of public services: When the transfer of data is necessary for the efficient and effective management of public services. For example, it may be necessary to share information between different government agencies to ensure the proper provision of health, education, transportation services, etc.

International transfers: In the case of international data transfers, when necessary for compliance with legal obligations of the data controller or for the execution of a contract in the interest of the data subject, provided that appropriate safeguards are applied to protect personal data during the transfer.' Or regarding the retention of data, which is found in the activity register on the Corporation's page (<https://www.dip-caceres.es/registro-de-actividades/>), being public and free, where it is indicated: 'Data will be retained for the time necessary to fulfill the stated purpose and will be stored as long as the Provincial Council may have responsibilities arising from its processing. The timeframes for temporary documentary archiving will be observed, according to the conservation criteria, in compliance with the Law.

Likewise, the retention periods for the information established by Law 39/2015, of October 1, on the Common Administrative Procedure and by the

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Law 19/2013, of December 9, on transparency, access to public information, and good governance, for the purposes of the appropriate resources."

We also acknowledge our error regarding the omission of the information in Article 15.1 e) and f) of the GDPR; we apologize to the complainant and thank them for the observation to correct the error in the future, as it is our interest to comply with current regulations and fully uphold the rights of citizens."

THIRD: Once the allegations from the responding party have been received, certain aspects arise that need clarification. For this reason, on July 30, 2024, a new communication was sent to complement the documentation initially submitted, providing proof of the communication to the interested party regarding the recipients or categories of recipients to whom, if applicable, their data has been effectively communicated, as well as the other aspects contemplated in Article 15 of the GDPR that were omitted in their response dated May 22, 2024.

On August 1, 2024, the Provincial Office of Information Management and Security sent a letter to this Agency indicating that "(...) We attach, again, the certificate of appearance of the interested party (date 2024-05-22 08:52:39.364-Notified), where it is recorded that the report from the area of information technology and innovation was notified to the complainant, with a section titled "Recipients" containing information about the destination or category of recipients to whom, if applicable, their personal data was communicated, stating:

"Recipients: Personal data has not been transferred to third parties, (...)" From the report received, we must conclude that their data has not been transferred and/or communicated."

Having analyzed and verified the responses we provided to the interested parties, including the complainant, in exercising their access rights, we will proceed to include the following information in accordance with current regulations:

"The interested party may exercise their right to request the controller to rectify or delete personal data or to limit the processing of their personal data, or to oppose such processing; they must, if applicable, notify this Administration by any legally valid means that provides proof, preferably by electronic registration. They also have the right to file a complaint with the appropriate supervisory authority, for which we provide the link to the website of the Spanish Data Protection Agency: <https://www.aepd.es/>"

FOURTH: The result of the transfer procedure indicated in the previous Fact did not allow for the understanding that the claims of the complainant were satisfied. Consequently, on August 20, 2024, for the purposes provided in Article 64.1 of the LOPDGDD, the Presidency of the Spanish Data Protection Agency agreed to admit the complaint for processing.

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The aforementioned agreement granted the responding party a hearing process, so that within ten working days they could present the allegations they deemed appropriate.

The responding party has indicated that "(...) In the letter received, by which they admit the complaint filed by Mr. A.A.A., regarding the exercise of their rights of access to their data, once the chronology of events is presented, it is stated: "Ultimately, the respondent does not prove to have informed the complainant whether their personal data has been effectively transferred to third parties, nor about the possibility of exercising the rights conferred by paragraphs e) and f) of Article 15.1 of the GDPR."

It results that paragraphs e) and f) of Article 15.1 of the GDPR indicate:

"e) the existence of the right to request the controller to rectify or delete personal data or to limit the processing of personal data concerning the interested party, or to oppose such processing;

f) the right to lodge a complaint with a supervisory authority;" We attach the certificate of appearance of the interested party dated 21/08/2024, as well as a copy of the communication sent which states literally:

We attach the certificate of appearance of the interested party dated 21/08/2024, as well as a copy of the communication sent which states literally:

"(...) we inform you (...):

A. Regarding whether your personal data has been transferred to third parties:

In the report from the area of information technology and innovation, there is a section titled "Recipients" with information about the destination or category of recipients to whom, if applicable, your personal data was communicated, stating:

"Recipients: Personal data has not been transferred to third parties, (...)"

From the report received, we must conclude that your data has NOT been transferred and/or communicated.

B. Regarding the possibility of exercising the rights conferred by paragraphs e) and f) of Article 15.1 of the GDPR, we inform you that:

"You may exercise your right to request the controller to rectify or delete personal data or to limit the processing of your personal data concerning you, or to oppose such processing; you must, if applicable, notify this Administration by any legally valid means that provides proof, preferably by electronic registration.

You also have the right to lodge a complaint with the appropriate supervisory authority, for which we provide the link to the website of the Spanish Data Protection Agency: <https://www.aepd.es/>.

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The respondent has provided the document sent to the claimant informing them that there are no signed assignees as of August 21, 2024, as well as a copy of the certificate issued by the Single Enabled Electronic Management Service (DEHÚ) indicating that the respondent accessed the content of the notification on the same date.

LEGAL GROUNDS

I

Competence

In accordance with the powers granted to each supervisory authority by Article 58.2 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and as established in Articles 47, 48.1, and 64.1 of the LOPDGDD, the Presidency of the Spanish Agency for Data Protection is competent to initiate and resolve this procedure.

Furthermore, Article 63.2 of the LOPDGDD states: "The procedures processed by the Spanish Agency

for Data Protection shall be governed by the provisions of Regulation (EU) 2016/679, by this organic law, by the regulatory provisions issued for its development, and, in so far as they do not contradict them, subsidiarily by the general rules on administrative procedures."

II

Preliminary Issues

In accordance with the provisions of Article 55 of the GDPR, the Spanish Agency for Data Protection is competent to perform the functions assigned to it in Article 57, including the enforcement of the Regulation and promoting awareness among controllers and processors regarding their obligations, as well as addressing complaints submitted by a data subject and investigating, as appropriate, the reasons for such complaints.

Correspondingly, Article 31 of the GDPR establishes the obligation of controllers and processors to cooperate with the supervisory authority that requests it in the performance of its functions. In cases where they have appointed a data protection officer, Article 39 of the GDPR assigns this officer the function of cooperating with that authority.

In accordance with this regulation, following the procedure established in Article 65.4 of the LOPDGDD, prior to the admission of the complaint regarding the exercise of the rights regulated in Articles 15 to 22 of the GDPR, which gives rise to this procedure, the complaint was forwarded to the respondent for analysis, requiring a response to this Agency within one month and proof of having provided the claimant with the appropriate response.

The result of this forwarding did not satisfy the claims of the claimant. Consequently, on August 20, 2024, for the purposes provided in Articles 64.1 and 65 of the LOPDGDD, the complaint was admitted for processing. This admission initiates the present procedure regarding the failure to address a request for the exercise of the rights established in Articles 15 to 22 of the GDPR, regulated in Article 64.1 of the LOPDGDD, which states:

"When the procedure refers exclusively to the failure to address a request for the exercise of the rights established in Articles 15 to 22 of Regulation (EU) 2016/679 of the European Parliament and of the Council, of April 27, 2016, it shall be initiated by an admission agreement, which shall be adopted in accordance with the provisions of Article 65 of this organic law.

In this case, the deadline for resolving the procedure shall be six months from the date on which the claimant was notified of the admission agreement. After this period, the interested party may consider their complaint upheld."

Article 58.2 of the GDPR grants the Spanish Agency for Data Protection a series of corrective powers to correct any infringement of the GDPR, including "ordering the controller or processor to address the requests for the exercise of the rights of the data subject under this Regulation."

III

Rights of Individuals Regarding Personal Data Protection

The rights of individuals regarding personal data protection are regulated in Articles 15 to 22 of the GDPR and Articles 13 to 18 of the LOPDGDD. These include the rights of access, rectification, erasure, objection, the right to restriction of processing, and the right to data portability.

The formal aspects related to the exercise of these rights are established in Articles 12 of the GDPR and 12 of the LOPDGDD.

Additionally, consideration is given to the statements made in Recitals 59 and following of the GDPR. In accordance with the provisions of these regulations, the data controller must establish means and mechanisms to facilitate the exercise of rights by the data subject, which shall be free of charge (without prejudice to the provisions of Articles 12.5 and 15.3 of the GDPR), and is obliged to respond to requests made no later than one month, unless they can demonstrate that they are unable to identify the data subject, and to state their reasons if they do not intend to address such request. The burden of proof regarding compliance with the obligation to respond to the request for the exercise of rights made by the affected party lies with the controller.

The communication directed to the data subject regarding their request must be expressed in a concise, transparent, intelligible, and easily accessible manner, using clear and plain language.

Right of Access

In accordance with the provisions of Article 15 of the GDPR and Article 13 of the LOPDGDD, "the data subject has the right to obtain from the data controller confirmation as to whether or not personal data concerning them is being processed and, if so, the right of access to the personal data."

Regarding the right of access to personal data, according to the provisions of Article 13 of the LOPDGDD, when the exercise of the right refers to a large amount of data, the data controller may request the affected party to specify the "data or processing activities to which the request refers." The right will be considered granted if the controller provides remote access to the data, with the request being deemed fulfilled (although the data subject may request information regarding the aspects provided for in Article 15 of the GDPR).

The exercise of this right may be considered repetitive if it is exercised more than once within a period of six months, unless there is a legitimate reason for doing so. On the other hand, the request will be considered excessive when the affected party chooses a means other than the one offered that incurs a disproportionate cost, which must be borne by the affected party.

Like the other rights of the data subject, the right of access is a personal right. It allows the citizen to obtain information about the processing of their data, the possibility of obtaining a copy of the personal data concerning them that is being processed, as well as information, in particular, about the purposes of the processing, the categories of personal data concerned, the recipients or categories of recipients to whom the data may be communicated, the expected retention period or criteria for retention, the possibility of exercising other rights, the right to lodge a complaint with the supervisory authority, the information available about the source of the data (if it has not been obtained directly from the data subject), the existence of automated decisions, including profiling, and information about transfers of personal data to a third country or to an international organization. The possibility of obtaining a copy of the personal data being processed will not negatively affect the rights and freedoms of others.

V

Conclusion

In the case analyzed here, from the documentation provided and the information received from both parties, it has been established that the claiming party exercised their right of access to their personal data on April 24, 2024, and that the responding party, on May 22, 2024, provided such access incompletely by failing to inform them about the recipients or categories of recipients to whom their personal data was communicated or will be communicated, the retention period of their data, as well as the right to rectify and delete personal data and to lodge a complaint with the present authority, if applicable.

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The Judgment of the Court of Justice (First Chamber), of January 12, 2023,

"Preliminary ruling — Protection of natural persons with regard to the processing of personal data — Regulation (EU) 2016/679 — Article 15, paragraph 1, letter c) — Right of access of the data subject to their data — Information on the recipients or categories of recipients to whom the personal data have been or will be communicated — Limitations,"

"(...) declares:

Article 15, paragraph 1, letter c), of Regulation (EU) 2016/679 of the European Parliament and of the Council, of April 27, 2016, on the protection of natural persons with regard to the processing of personal data and on the free movement of such data, and repealing Directive 95/46/EC (General Data Protection Regulation), must be interpreted as meaning that the right of access of the data

subject to the personal data concerning them, established in that provision, implies, when those data have been or are to be communicated to recipients, the obligation of the data controller to provide that data subject with the identity of those recipients, unless it is not possible to identify them or unless the data controller demonstrates that the requests for access from the data subject are manifestly unfounded or excessive within the meaning of Article 12, paragraph 5, of Regulation 2016/679, in which case the data controller may only indicate to the data subject the categories of recipients concerned.”

However, during the processing of the present procedure, the respondent party has evidenced that it has sent and notified a document to the claimant party in which the missing information is included; whether their personal data have indeed been transferred to third parties as well as regarding the possibility of exercising the rights conferred by letters e) and f) of Article 15.1 of the GDPR, complying with what is indicated in Article 15.1 of the GDPR.

Consequently, although initially the right was not duly addressed, it has been once the legally established period has elapsed, and therefore, it is appropriate to estimate, for formal reasons, the claim that gave rise to the present procedure.

In view of the cited provisions and others of general application, the Presidency of the Spanish Agency for Data Protection RESOLVES:

FIRST: TO ESTIMATE for formal reasons, the claim made by A.A.A. against the PROVINCIAL COUNCIL OF CÁCERES. However, a new certification by the respondent party is not warranted, as the response was issued late, and no additional actions are required from the data controller.

SECOND: TO NOTIFY this resolution to A.A.A. and to the PROVINCIAL COUNCIL OF CÁCERES. In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

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Against this resolution, which concludes the administrative process in accordance with Article 48.6 of the LOPDGDD, and in accordance with the provisions of Article 123 of the LPACAP, the interested parties may optionally file a motion for reconsideration before the Presidency of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution or directly file a contentious-administrative appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and paragraph 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law. 1381-090823

Olga Pérez Sanjuán

The Deputy Director General of Data Inspection, in accordance with Article 48.2 LOPDGDD, due to vacancy of the Presidency and Deputy Presidency

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